

NorthWind Analytics, Inc.

Data Processing Agreement

SYNTHETIC DOCUMENT — generated for demonstration purposes. All entity names, figures, dates and findings are invented. This document describes no real company.

This Data Processing Agreement (the “Agreement”) forms part of the Master Services Agreement between NorthWind Analytics, Inc. (“Processor”) and the Customer identified in the applicable Order Form (“Controller”). It governs the processing of Personal Data by the Processor in the course of providing the Services.

Effective date: 14 March 2026. Version 4.2. This version supersedes all prior versions.

1. Definitions

The Processor shall implement and maintain appropriate technical and organisational measures designed to protect Personal Data against accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to Personal Data transmitted, stored or otherwise processed.

The Controller retains sole responsibility for determining the purposes and means of processing and for the accuracy, quality and legality of Personal Data supplied to the Processor under this Agreement.

Each party shall promptly notify the other upon becoming aware of any circumstance likely to give rise to a material breach of the obligations set out in this Agreement, including any regulatory inquiry that concerns the processing activities described herein.

Nothing in this Agreement shall be construed as transferring ownership of Personal Data, and the Processor acquires no right, title or interest in such data other than the limited licence necessary to perform the Services.

The Processor shall ensure that persons authorised to process Personal Data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality.

Where the Processor engages another processor for carrying out specific processing activities on behalf of the Controller, the same data protection obligations set out in this Agreement shall be imposed on that other processor by way of a contract.

The Processor shall make available to the Controller all information necessary to demonstrate compliance with the obligations laid down in this section and allow for and contribute to audits, including inspections, conducted by the Controller or another auditor mandated by the Controller.

Audit rights under this section may be exercised no more than once in any twelve month period, save where an audit is required by a supervisory authority or follows a Personal Data Breach affecting the Controller.

2. Scope and Roles

Following termination of the Services, the Processor shall, at the choice of the Controller, delete or return all Personal Data and delete existing copies unless applicable law requires continued storage.

The Processor shall maintain a written record of all categories of processing activities carried out on behalf of the Controller and shall make that record available to a supervisory authority on request.

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3. Processor Obligations

The Processor shall make available to the Controller all information necessary to demonstrate compliance with the obligations laid down in this section and allow for and contribute to audits, including inspections, conducted by the Controller or another auditor mandated by the Controller.

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4. Security Measures

The Processor shall ensure that persons authorised to process Personal Data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality.

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5. Personnel and Confidentiality

Each party shall promptly notify the other upon becoming aware of any circumstance likely to give rise to a material breach of the obligations set out in this Agreement, including any regulatory inquiry that concerns the processing activities described herein.

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6. Audit and Certification

The Processor shall make available to the Controller all information necessary to demonstrate compliance with the obligations laid down in this section and allow for and contribute to audits, including inspections, conducted by the Controller or another auditor mandated by the Controller.

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7. Subprocessing and Data Location

7.1 The Controller grants the Processor general authorisation to engage subprocessors for the provision of the Services, subject to the conditions set out in this section. A current list of authorised subprocessors is maintained at the address notified to the Controller upon execution.

7.2 The Processor shall notify the Controller of any intended addition or replacement of a subprocessor not less than thirty days prior to the change taking effect, and the Controller may object on reasonable data protection grounds within that period.

7.3 Primary processing facilities. Personal Data processed under this Agreement is hosted in the Processor's United States regions, specifically us-east-1 and us-west-2. Replication between these regions occurs continuously for availability and disaster recovery purposes. All primary processing, indexing and long-term storage of Customer Personal Data occurs within these two United States regions.

7.4 European Union processing region. An additional European Union processing region was under evaluation as of the effective date of this Agreement. The EU subprocessor arrangement described in Annex C remained pending and had not been executed at the time of publication. Accordingly, EU in-region data residency is not contractually established under this version of the Agreement.

7.5 Customers requiring in-region European Union processing as a contractual commitment should confirm the current deployment status and subprocessor arrangement with their account representative in writing before relying on the provisions of this section. The Processor makes no representation in this Agreement that EU-only processing is available.

7.6 Cross-border transfers of Personal Data from the European Economic Area are carried out under the Standard Contractual Clauses set out in Annex B, together with the supplementary measures described in Annex D.

8. Personal Data Breach

Each party shall promptly notify the other upon becoming aware of any circumstance likely to give rise to a material breach of the obligations set out in this Agreement, including any regulatory inquiry that concerns the processing activities described herein.

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9. Data Subject Rights

The Processor shall implement and maintain appropriate technical and organisational measures designed to protect Personal Data against accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to Personal Data transmitted, stored or otherwise processed.

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10. Return and Deletion

Following termination of the Services, the Processor shall, at the choice of the Controller, delete or return all Personal Data and delete existing copies unless applicable law requires continued storage.

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11. Liability

Each party shall promptly notify the other upon becoming aware of any circumstance likely to give rise to a material breach of the obligations set out in this Agreement, including any regulatory inquiry that concerns the processing activities described herein.

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12. General Provisions

The Processor shall make available to the Controller all information necessary to demonstrate compliance with the obligations laid down in this section and allow for and contribute to audits, including inspections, conducted by the Controller or another auditor mandated by the Controller.

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Annex C — Subprocessor Register

The following subprocessors are authorised as of the effective date. Entries marked “pending” have not been executed and confer no contractual right of reliance.

Subprocessor	Purpose	Location	Status
Cirrus Compute	Infrastructure	us-east-1	Executed
Cirrus Compute	Infrastructure	us-west-2	Executed
Halden Systems	Log aggregation	us-east-1	Executed
Meridian Hosting BV	EU processing region	eu-west-1	Pending — not executed
Orbit Mail	Transactional email	us-east-1	Executed

The pending entry above reflects an arrangement under negotiation. It does not constitute an authorised subprocessor for the purposes of section 7.